

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

CIVIL APPELLATE JURISDICTION

Writ Petition No. 12252 of 2018

Shri Vinay Krishnadas Shah & Anr. v. The State of Maharashtra & Ors.

2026:BHC-AS:8930

CORAM: M.S. Karnik & S.M. Modak, JJ.

Reserved on: 6 February 2026 | Pronounced on: 16 February 2026

1. The issue involved in this petition is whether the directions given in a Government Resolution prevail over the provisions of Maharashtra Employees of Private Schools (Conditions of Service) Rules, 1981 (MEPS Rules). It pertains to appointment on the post of Headmaster in a private school. Rule 9(10) prescribes 33% reservation from the total number of posts of Heads and Assistant Heads, while Government Circulars/Resolution dealt with roster verification and filling up of Headmaster posts.
2. The petitioners challenged the refusal of approval to the appointment of Shri Vinay Krishnadas Shah as Headmaster. Petitioner No.2 had appointed him with effect from 1 June 2018 after the existing Headmaster was due to retire on 31 May 2018.
3. The Education Officer (Secondary), Raigad refused approval by order dated 13 August 2018, mainly on the ground of roster point and non-submission of documents. The petitioners challenged that order.
4. The Court considered the relevant correspondence, affidavit-in-reply, Government Resolutions and Circulars relied upon by the State.
5. The Court considered the earlier decision in Smt. Swati Ravindra Walawalkar v. State of Maharashtra and Rule 9(10) of the MEPS Rules, under which 33% of the total number of posts/vacancies of Heads and Assistant Heads are reserved for specified categories.
6. In the present case there were two posts of Headmaster. If one of the two posts were treated as reserved by rotation, reservation would become 50%, exceeding the 33% prescribed by Rule 9(10). The Court held that the MEPS Rules, framed under the delegated powers under Section 16 of the MEPS Act, are binding.
7. The Court held that executive directions cannot be issued contrary to statutory rules. The statutory rules prevail over executive instructions. Roster verification is relevant for ascertaining the reservation position, but where there are two Headmaster posts and reservation is not applicable on the facts considered by the Court, roster verification cannot justify refusal of approval.
8. The writ petition was therefore allowed. The order dated 13 August 2018 refusing approval was set aside. Respondent No.2 was directed to grant approval to the petitioner as Headmaster from 1 June 2018 within six weeks from communication of the order, with consequential reliefs.

ORDER

- (i) The Writ Petition is allowed.
- (ii) The order dated 13 August 2018 passed by Respondent No.2 refusing approval to Petitioner No.1 for the post of Headmaster is set aside.
- (iii) Respondent No.2 is directed to grant approval to Petitioner No.1 to the post of Headmaster in the school from 1 June 2018 within six weeks from communication of the order.
- (iv) The Petitioner is entitled to all consequential reliefs.

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